

25VECV04894 25VECV04894

County: los-angeles

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25VECV04894 MAVERICK BANKCARD, INC. vs
MARCHESA HOLDINGS, LLC, et al.

September 17, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Enforce Settlement

I.

Background

On August 29, 2025, Plaintiff Maverick Bankcard, Inc. ("Maverick Bankcard" or "Plaintiff") filed this action against Defendants, Marchesa Holdings, LLC ("Marchesa Holdings"), and Georgina Chapman ("Chapman") (collectively, "Defendants"), asserting one cause of action for breach of contract.

On April 7, 2026, the parties entered into a stipulation for future entry of judgment against Defendants (the "Stipulation"), whereby Defendants agreed to make payments pursuant to a settlement. (Feeney Decl., ¶¶ 3-4, Ex. A.) Upon default of that stipulation, Plaintiff would proceed with judgment. (Ibid.)

On June 12, 2026, Plaintiff filed a Notice of Settlement of Entire Case with a condition that specified requirements must be met within 45 days and that a request for dismissal must be filed by August 31, 2026.

Subsequently on June 12, 2026, the Court set an Order to Show Cause Re: Dismissal. The Court ordered that any oppositions to the OSC must be filed 10 calendar days before the OSC date.

On August 7, 2026, default was entered against both Defendants.

On August 18, 2026, Plaintiff filed the instant motion to enforce settlement.

On September 10, 2026, Plaintiff filed a declaration in response to the OSC Re: Dismissal requesting the OSC Re: Dismissal be continued until after the instant motion is heard.

On September 14, 2026, the Court continued the OSC Re: Dismissal to the same hearing date as the instant motion to enforce settlement.

To date, Defendants have not filed any oppositions or response in relation to the instant motion or the OSC Re: Dismissal.

II. Discussion

Settlements may be enforced under Code of Civil Procedure section 664.6, a motion for summary judgment, by a separate suit in equity, or by amendment of the pleadings to raise settlement as an affirmative defense. (Gauss v. GAF Corporation (2002) 103 Cal.App.4th 1110, 1122.) A section 664.6 motion to enforce a settlement involves examining if there is an enforceable settlement and interpreting the settlement terms. (Estate of Jones (2022) 82 Cal.App.5th 948, 952.) In a motion to enforce a settlement agreement, the Court may interpret the settlement terms and conditions, but it cannot impose terms to which the parties did not agree. (Ibid.)

Under Code of Civil Procedure, section 664.6:

(a) If parties to pending litigation stipulate, in a writing signed by the parties outside of

the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.¿

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:¿

(1) The party.¿

(2) An attorney who represents the party.¿

(3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits.

(Code Civ. Proc., § 664.6.)

Plaintiff asserts that the parties entered into a Stipulation on April 7, 2026, that required Defendants to pay a total of \$132,634.85, plus interest at the contract rate of 10% per annum from August 14, 2025. (Feeney Decl., ¶ 3, Ex. A.)

Plaintiff asserts that Defendants only paid a total of \$20,000.00, consisting of a payment of \$10,000 on May 11, 2026, and a payment of \$10,000 on June 1, 2026. (Feeney Decl., ¶ 6.) Defendants, thereafter, allegedly defaulted by failing to make any further payments pursuant to the Stipulation. (Id., at ¶ 7.)

As a result, Plaintiff requests that the Court enforce the Stipulation and enter judgment in the amount of \$129,615.35, including the remaining balance (\$112,634.85), interest (\$12,313.14), attorneys' fees

pursuant to local rule 3.214 (\$3,016.35), and court costs (\$1,651.01). (Feeney Decl., ¶ 8.)

A. Enforceable Settlement Agreement

Plaintiff provided a copy of the Stipulation, which included written signatures of Edward Chapman, as CEO of Marchesa Holdings, Georgina Chapman, and Elisabeth Feeney, as Vice President of Legal for Maverick Bankcard. (Feeney Decl., ¶ 3, Ex. A, p. 9.)

Code of Civil Procedure section 664.6 provides that “if parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement.” (Code Civ. Proc. § 664.6.) The moving party bears the initial burden of demonstrating that a signed agreement exists. (*Iyere v. Wise Auto Grp.* (2023) 87 Cal.App.5th 747, 755.) Once that initial showing is made, the burden shifts to the opposing party to offer admissible evidence creating a factual dispute as to the authenticity of their signatures. (*Ibid.*) The opposing party need not prove that the signature is inauthentic but must submit sufficient evidence to create a genuine factual dispute. (*Ibid.*) The burden then shifts back to the moving party, who “retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature.” (*Ibid.*)

There is no alleged dispute that this Stipulation is valid and enforceable as Defendants have not appeared in the instant matter and have not served any opposition to the instant motion.

Therefore, Plaintiff has satisfied its burden of establishing that the Stipulation is an enforceable settlement agreement.

B. Settlement Terms

The court's factual findings regarding what terms the parties agreed to are reviewed on appeal under the substantial evidence standard. (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182 [If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement.].) However, although the

court may receive evidence, determine disputed facts, and enter the terms of a settlement as a judgment, “nothing in the statute authorizes a judge to create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (J.B.B. Investment Partners, Ltd. v. Fair (2014) 232 Cal.App.4th 974, 983–984.)

The terms of the Stipulation provide that Defendants were to make monthly payments due on the 1st day of each month beginning April 1, 2026, in the amount of \$10,000.00 for eight months, and in the amount of \$4,784.98 thereafter until the remaining balance was paid in full. (Feeney Decl., ¶ 3, Ex. A, p. 3.) The Stipulation also provided that Defendants agreed to entry of judgment against them should they default. Specifically, a judgment would be entered against Defendants for the remaining balance of the principal sum, plus interest at the contract rate of 10% per annum from August 14, 2025, plus attorneys’ fees and costs, any other fees and costs to file the motion or application to enforce the Stipulation. (Feeney Decl., ¶ 3, Ex. A, p. 2.)

Upon review of the Stipulation, the Court finds that terms were clear and mutually assented to, as demonstrated by the written signatures of the Defendants.

Following Defendants’ failure to make payments following June 1, 2026, Defendants breached the Stipulation and Plaintiff is entitled to request an entry of judgment against them, pursuant to the terms of the Stipulation.

The Court finds Plaintiff is entitled to a judgment of \$129,615.35, consisting of the remaining balance of \$112,634.85, \$12,313.14 in interest at 10% per annum from August 14, 2025, \$3,016.35 in attorneys’ fees, and \$1,651.01 in court costs, is warranted under the terms of the Settlement Agreement.

III.

Conclusion

Accordingly, Plaintiff’s Motion to Enforce Settlement is GRANTED

Judgment is entered in favor of Plaintiff and against Defendants, Marchesa Holdings, LLC and Georgina Chapman, jointly and severally, in the total amount of \$129,615.35.

Plaintiff to file and serve a proposed Judgment forthwith.

Moving party to give notice.